

HOUSE BILL 2591

By Travis

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 11, Chapter 6, Part 1; Title 62, Chapter 5;
Title 63 and Title 68, relative to human remains.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 11-6-118(a), is amended by adding the following as a new subdivision:

(6) The import or export of a body, body part, or organically reduced remains for the purpose of organic human reduction, pursuant to title 62, chapter 5, part 9.

SECTION 2. Tennessee Code Annotated, Section 62-5-101(1), is amended by deleting the subdivision and substituting:

(1) "Authorizing agent":

(A) Means a person:

(i) Legally entitled to authorize the cremation of a dead human body or body parts; and

(ii) Working at an organic human reduction facility, as defined in § 62-5-901; and

(B) Does not include a funeral director or funeral establishment;

SECTION 3. Tennessee Code Annotated, Section 62-5-403(4)(A), is amended by adding "organic human reduction facility," immediately after "cemetery company".

SECTION 4. Tennessee Code Annotated, Section 62-5-403(5), is amended by adding "organic human reduction," immediately after "for the funeral,".

SECTION 5. Tennessee Code Annotated, Section 62-5-313(d)(2), is amended by deleting the subdivision and substituting:

(2) If a dead human body is to be cremated or undergo organic human reduction, then a permanent identification device approved by the board, containing the decedent's name, date of birth, and date of death shall be placed in the crematory urn or organic human reduction container before the remains are placed in such urn or container. If the information is not available to the funeral establishment, then a permanent identification device stating the information is not available shall be placed in the crematory urn or organic human reduction vessel before the remains are placed in the urn or as such remains are placed in the organic human reduction vessel.

SECTION 6. Tennessee Code Annotated, Title 62, Chapter 5, is amended by adding the following as a new part:

62-5-901.

As used in this part, unless the context otherwise requires:

(1) "Board" means the board of funeral directors and embalmers;

(2) "Body parts":

(A) Means limbs or other portions of the anatomy that are removed from a living person for medical purposes during a biopsy, treatment, or surgery; and

(B) Includes dead human bodies that have been donated to science for the purpose of medical education or research and parts of the human body that were removed for such purposes;

(3) "Department" means the department of health;

(4) "Organic human reduction" means the contained, accelerated conversion of human remains to compost or soil using a container that accelerates biological decomposition;

(5) "Organic human reduction container" means a container:

(A) In which organic human reduction occurs; and

(B) That meets substantially the following standards:

(i) Able to be closed in order to provide a complete covering for the human remains;

(ii) Resistant to leakage or spillage;

(iii) Rigid enough for handling with ease; and

(iv) Able to provide protection for the health, safety, and personal integrity of personnel working at an organic human reduction facility;

(6) "Organic human reduction facility" or "facility" means a location where organic human reduction is performed;

(7) "Organically reduced remains" means the resulting residue of a dead human body that had undergone organic human reduction;

(8) "Political subdivision" means a city, town, municipality, county, or metropolitan government within this state;

(9) "Temporary container" means a receptacle for organic human remains composed of cardboard, plastic, metal, or another material that can be closed in a manner that prevents the leakage or spillage of the organic human remains and the entrance of foreign material and that is of sufficient size to hold the organic human remains until the remains are placed in an urn or scattered; and

(10) "Urn" means a receptacle designed to encase organic human remains permanently.

62-5-902.

(a) An operator of an organic human reduction facility shall not perform organic human reduction or allow organic human reduction at an organic human reduction facility of a dead human body, other than a body that was donated to science for purposes of medical education or research, until:

(1) The operator has received a permit from the department of health for organic human reduction of human remains that authorizes the organic human reduction of the decedent; and

(2) The operator has received all other documentation required by this state or a political subdivision of this state that authorizes the organic human reduction of the decedent.

(b) If an operator of an organic human reduction facility submits a sworn affidavit to the department that states the operator has completed the organic human reduction of human remains without charge, then the department shall issue a refund of fees associated with the receipt of a permit as described in subdivision (a)(1).

62-5-903.

(a)

(1) The operator of an organic human reduction facility may schedule the time for the organic human reduction of a dead human body to occur at the operator's own convenience after the requirements of § 62-5-902 have been met and the decedent or body parts have been delivered to the facility, unless, in the case of a dead human body, the operator has received specific instructions to the contrary from the organic human reduction facility.

(2) The operator of an organic human reduction facility is responsible for a dead human body or body parts when the body or body parts have been delivered to or accepted by the facility or an employee or agent of the facility.

(b) An operator of an organic human reduction facility shall:

(1) Upon receipt at the organic human reduction facility of a dead human body, place the body in a holding or refrigerated facility at the organic human reduction facility, and keep the body in the holding or refrigerated facility until the organic human reduction process commences or when the body is held at the facility for less than eight (8) hours; and

(2) If the body is held for eight (8) hours or longer, place the body in a refrigerated facility at the organic human reduction facility and keep the body in the refrigerated facility until the organic human reduction process commences.

(c) An operator of an organic human reduction facility shall not simultaneously perform organic human reduction on more than one (1) decedent, or body parts removed from more than one (1) decedent or living person, in the same organic human reduction container.

(d) An operator of an organic human reduction facility shall not permit a person other than an employee of the facility, a person authorized pursuant to the instructions of the decedent, or an heir or personal representative of the decedent, if any, to be present in the holding facility or organic human reduction room while:

(1) A dead human body or body parts are being held in the facility or room prior to organic human reduction;

(2) A dead human body or body parts are being reduced; or

(3) Organically reduced remains are being removed from the organic human reduction container.

(e) An operator of an organic human reduction facility shall not remove dental gold or silver, body parts, organs, or other items of value from a dead human body prior to the organic human reduction process or from the organic remains after organic human

reduction unless the operator was acting under instructions that specifically authorize the removal of dental gold or silver, body parts, organs, or other items of value.

(f) An operator of an organic human reduction facility who removes dental gold or silver, body parts, organs, or other items of value from a dead human body, or assists in the removal, shall not charge a fee for doing so that exceeds the actual cost to the facility for performing or assisting in the removal of such items.

(g)

(1) Upon completion of the organic human reduction process, the operator of an organic human reduction facility shall remove the organically reduced remains from the organic human reduction container that is practicably recoverable.

(2) If the organically reduced remains do not fit in the urn selected for the remains or in the temporary container, then the operator shall place the remainder in a separate temporary container. Organically reduced remains placed in a separate temporary container must be delivered, released, or disposed of together with those in the urn or other temporary container.

(3) This subsection (g) does not require an operator of an organic human reduction facility to recover a specified quantity or quality of organically reduced remains upon the completion of an organic human reduction. An operator shall recover the organically reduced remains that are practicably recoverable from the organic human reduction container.

(h) An operator of an organic human reduction facility shall not knowingly represent that an urn or temporary container contains the recovered organically reduced remains of a specific decedent or of body parts removed from a specific decedent or living person when the urn or container does not. This subsection (h) does not prohibit

the making of such a representation because of the presence in the recovered organically reduced remains of de minimis amounts of the organically reduced remains of another decedent or of body parts.

(i) An operator of an organic human reduction facility or a funeral director shall ship or cause to be shipped any organically reduced remains by a class or method of mail, common carrier service, or delivery service that has an internal system for tracking the location of the organically reduced remains during shipment and that requires a signed receipt from the person accepting delivery of the organically reduced remains.

(j) An operator of an organic human reduction facility shall establish and maintain a system for accurately identifying each dead human body in the facility's possession and for identifying each decedent or living person from whom body parts in the facility's possession were removed during all phases of the holding and organic human reduction process.

(k) An operator of an organic human reduction facility shall not knowingly use or allow the use of the same organic human reduction chamber for the organic human reduction of dead human bodies or body parts and bodies or body parts of animals.

62-5-904.

(a) Except as provided in subsection (b), a person shall not:

(1) Dispose of the organically reduced remains of a dead human body or body parts in a manner or in a location that the organically reduced remains are commingled with those of another decedent, or body parts removed from another decedent or living person; or

(2) Place the organically reduced remains of more than one (1) decedent, or of body parts removed from more than one (1) decedent or living person, in the same urn or temporary container.

(b) Notwithstanding subsection (a), a person may:

(1) Scatter organically reduced remains at sea, by air, or in a dedicated area at a cemetery used exclusively for the scattering on the ground of the organically reduced remains of dead human bodies or body parts;

(2) If complying with specific instructions from a decedent, or an heir or personal representative designated by the decedent:

(A) Commingle organically reduced remains of more than one (1) decedent, or of body parts removed from more than one (1) decedent or living person; or

(B) Place in the same urn or temporary container the organically reduced remains of more than one (1) decedent, or body parts removed from more than one (1) decedent or living person; and

(3) If the person is operating under the decedent's instructions, commingle the organically reduced remains or body parts removed from another decedent or living person, after receipt of the organically reduced remains or the body parts, with those of another decedent or body parts removed from another decedent or living person.

(c) Unless otherwise specified by written agreement between the operator of the organic human reduction facility or funeral establishment and the person or entity requesting the organic human reduction of human remains, organically reduced human remains unclaimed one hundred eighty (180) calendar days from the date of organic human reduction may be interred, entombed, or inurned by the operator of the facility. The operator of the facility or funeral establishment shall make a record of the disposition of the unclaimed organically reduced human remains available for inspection during normal business hours.

62-5-905.

(a) An operator of an organic human reduction facility shall ensure that a written receipt is provided to the person who delivers a dead human body or body parts to the facility for organic human reduction.

(b) If the dead human body is other than a body that was donated to science for purposes of medical education or research, then the receipt must be signed by both a representative of the organic human reduction facility and the person who delivered the decedent to the facility and must indicate:

(1) The name of the decedent;

(2) The date and time of delivery of the dead human body;

(3) The type of casket or container, if any, in which the decedent was delivered to the facility;

(4) The name of the person who delivered the decedent to the facility, if applicable;

(5) The name of the funeral home or other establishment with whom the delivery person is affiliated; and

(6) The name of the person who received the decedent on behalf of the facility.

(c) If the dead human body was donated to science for purposes of medical education or research, then the receipt must indicate the name of the person who received the decedent on behalf of the facility.

(d)

(1) At the time of releasing organically reduced remains, an operator of an organic human reduction facility shall ensure that a written receipt signed by both a representative of the facility and the person who received the organically

reduced remains is provided to the person who received the organically reduced remains. Unless the organically reduced remains are those of a dead human body that was donated to science for purposes of medical education or research, or are those of body parts, the receipt must indicate:

(A) The name of the decedent;

(B) The date and time of the release of the dead human body;

(C) The name of the person to whom the organically reduced remains were released;

(D) If applicable, the name of the funeral home, cemetery, or other entity to whom the organically reduced remains were released; and

(E) The name of the person who released the organically reduced remains on behalf of the organic human reduction facility.

(2) If the organically reduced remains are those of a dead human body that was donated to science for purposes of medical education or research or are those of body parts, then the receipt must be signed by both a representative of the organic human reduction facility and the person who received the organically reduced remains, and the receipt must indicate the date and time of the release.

For other organically reduced remains, the receipt must accompany the organically reduced remains. The requirement of this section that the person receiving the organically reduced remains sign the receipt provided by the facility is satisfied by the signature of the person whose name is on the delivery receipt to accept delivery of the organically reduced remains.

(e) An organic human reduction facility engaged in the business of reducing dead human bodies or body parts shall keep the following for a period of at least seven

(7) years after the date of each organic human reduction to which the information applies:

(1) A copy of each receipt issued upon acceptance by or delivery to the facility of a dead human body pursuant to subsection (b) or (c);

(2) A record of each organic human reduction conducted at the facility, containing at least the name of the decedent or, in the case of body parts, the name of the decedent or living person from whom the body parts were removed, the date and time of the organic human reduction, and the final disposition made of the organically reduced remains;

(3) A copy of each receipt issued pursuant to subsection (d); and

(4) A separate record of the organically reduced remains of each decedent or the body parts removed from each decedent or living person that were disposed of containing at least the name of the decedent, the date and time of the organic human reduction, and the location, date, and manner of final disposition of the organically reduced remains.

(f) Records required to be maintained under this part are subject to inspection by the board, or an authorized representative of the board, upon reasonable notice and at a reasonable time.

62-5-906.

(a) Unless an act or omission was made with malicious purpose, in bad faith, or in a wanton or reckless manner, the operator of an organic human reduction facility is not liable for damages in a civil action for the following act or omission:

(1) Having performed the organic human reduction of the decedent or body parts removed from the decedent or living person, or having released or

disposed of the organically reduced remains, in accordance with the instructions of the decedent or an heir or personal representative of the decedent; or

(2) Failure to correctly identify a dead human body prior to organic human reduction.

(b) Unless a refusal was made with malicious purpose, in bad faith, or in a wanton or reckless manner, the operator of an organic human reduction facility is not liable for damages in a civil action for refusing to accept a dead human body or body parts or to perform an organic human reduction under the following circumstances:

(1) The operator has actual knowledge that there is a dispute regarding the organic human reduction of the decedent or body parts, and the operator has not received an order of the court having jurisdiction ordering the organic human reduction of the decedent or body parts;

(2) The operator has a reasonable basis for questioning the accuracy of the information or statements provided to the operator with respect to the organic human reduction of the decedent or body parts; or

(3) The operator has any other lawful reason for refusing to accept the dead human body or body parts or to perform the organic human reduction.

(c) The operator of an organic human reduction facility is not liable for damages in a civil action in connection with the organic human reduction of or disposition of the organically reduced remains of dental gold or silver, jewelry, or other items of value delivered to the facility with a dead human body or body parts unless the acts or omissions of the operator were made with malicious purpose, in bad faith, or in a wanton or reckless manner.

(d) This section does not:

(1) Create a new cause of action or substantive legal right against the operator of an organic human reduction facility; or

(2) Affect immunities from civil liability or defenses established by law to which the operator of an organic human reduction facility may be entitled.

62-5-907.

If a person who signs the death certificate, a district attorney general, a law enforcement officer, or an emergency medical or rescue worker, emergency medical technician, or paramedic who attended to the person immediately prior to or after the person's death, signs a written statement requesting the delay of an organic human reduction based upon a reasonable belief that the cause of death may have been due to an event other than accidental or natural causes, then the organic human reduction of a dead human body must be delayed based upon that request.

62-5-908.

This part does not permit the organic human reduction of body parts from a decedent or living person at the request of a hospital or other institution. Only the individual from whose body the body parts were removed, or the individual's duly appointed representative, may make arrangements with an organic human reduction facility for the organic human reduction of body parts.

62-5-909.

The board shall promulgate rules to implement this part. The rules must be promulgated in accordance with the Uniform Administrative Procedures Act, compiled in title 4, chapter 5.

SECTION 7. Tennessee Code Annotated, Section 62-5-313(b), is amended by deleting the subsection and substituting:

(b)

(1) A license to operate a funeral establishment shall not be issued by the board unless the applicant has at least one (1) full-time person duly licensed for the practice of funeral directing, and if embalming, a duly licensed embalmer in attendance during the preparation of the dead remains.

(2) Each funeral establishment must have available for its use a preparation room equipped with tile, cement or composition floor, necessary drainage, and, if embalming, ventilation and necessary instruments and supplies for the preparation of embalming dead human bodies for burial, transportation, or other disposition.

SECTION 8. For the purposes of promulgating rules, this act takes effect upon becoming a law, the public welfare requiring it. For all other purposes, this act takes effect July 1, 2026, the public welfare requiring it.